



SPONSOR: Sen. Sturgeon
Rep. K. Williams

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 165

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO STUDENT IMPROVEMENT COMPONENT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1270, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and by redesignating accordingly:

3 (i) The Department shall implement a pilot program for the revised student improvement component in no less
4 than 3 local education agencies for the 2025-2026 academic year. The pilot program must include teachers, specialists, and
5 administrators and focus on refining the goal-setting process, ensuring alignment with professional growth and increasing
6 flexibility in student improvement measures.

7 (1) The pilot program must be conducted with the consent of the local education agency and the
8 organization representing the local education agency's educators for collective bargaining purposes, if applicable.

9 (2) Local education agencies participating in the 2025-2026 pilot shall be held harmless, meaning that
10 while they will still receive summative evaluations, the student improvement component will not factor into
11 overall ratings.

12 (3) The measure of student improvement must take into consideration student absence, student mobility,
13 student chronic noncompliance with school rules, chronic failure by parents to abide by the Parents' Declaration of
14 Responsibilities, and other factors that may adversely affect the evaluation. If a student has missed more than 15%
15 of the class time, their performance may only be used with the agreement of the educator under this chapter.

16 (4) In the 2026-2027 academic year, the pilot will expand to no less than 6 additional local education
17 agencies. Local education agencies participating in the 2026-2027 pilot shall also be held harmless, meaning they
18 will receive summative evaluations that do not include the student improvement component, allowing for further
19 refinement of implementation and support structures.

20 (5) Beginning with the 2027-2028 academic year, the revised student improvement component will be
21 implemented statewide for all licensed and certified educators, ensuring a system that is equitable, flexible, and
22 focused on meaningful student progress.

SYNOPSIS

This Act requires the Department of Education to pilot a revised student improvement component under the Delaware Performance Appraisal System and Delaware Teacher Growth and Support System beginning in the 2025-2026 school year. The pilot must include at least 3 local education agencies and consider factors such as student absences, mobility, and noncompliance that may adversely affect a student's performance. Participants will be held harmless during the pilot program. The program will expand in 2026-2027 and be implemented statewide in 2027-2028 for all licensed and certified educators.

Author: Senator Sturgeon